

PAYMENT POLICY

Enock Kibe Ngunyi - Website Development Services

Effective Date: January 2025

Version: 1.0

1. STANDARD PAYMENT STRUCTURE

Development Projects

Standard Payment Schedule:

- **Deposit (50%):** Due upon contract signing
- **Final Payment (50%):** Due upon project completion
- **Total:** As agreed in contract

Payment Methods Accepted:

- Bank Transfer
- Cheque (3-5 business days clearance)
- M-Pesa

2. PAYMENT PLANS

When Offered

Payment plans are offered for:

-  Registered organizations
-  Projects over KES 75,000
-  Clients with verified credentials

Requirements

All payment plans require:

1. Minimum 30% deposit upfront
2. Post-dated cheques for all future payments
3. Signed commitment letter
4. Signed payment agreement
5. Maximum 6 months duration

Example:

- Payment 1: 30-40% (upon signing)
- Payment 2: 30-40% (1-3 months later)
- Payment 3: 20-40% (3-6 months later)

3. POST-DATED CHEQUES

When Required

Post-dated cheques are **MANDATORY** for:

- All payment plans
- Any payment scheduled more than 7 days in future

Requirements

All post-dated cheques must:

- Be provided BEFORE project launch
- Be drawn on valid bank accounts
- Have correct amounts and dates
- Be signed by authorized signatory
- Include organization stamp (for organizations)

Bounced Cheque Policy

If any cheque bounces:

- KES 2,000 bounced cheque fee applies
- Immediate suspension of website/services
- Payment must be made within 7 days
- Legal action may be pursued

4. STAGED PROJECT DELIVERY

Payment Stage 1 (Deposit Paid)

- Project development begins
- Regular progress updates provided
- No live delivery yet

Payment Stage 2 (50%+ Paid)

- Project launched on test/staging domain
- Client receives view-only or limited access
- Developer retains full admin control

Payment Stage 3 (100% Paid)

- Full delivery on production domain
- Complete ownership transfer
- Full admin access provided
- All documentation delivered
- Support period begins

5. LATE PAYMENT POLICY

Late Payment Fees

Grace Period: 7 days after due date (no fee)

After Grace Period:

- **Days 8-30:** 5% late fee per month
- **After 30 days:** Additional 10% (total 15%)

Example:

- Amount due: KES 25,000
- 10 days late: KES 25,000 + 5% (KES 1,250) = KES 26,250
- 35 days late: KES 25,000 + 15% (KES 3,750) = KES 28,750

Consequences of Non-Payment

After 14 Days Late:

- Website/service access suspended
- 48-hour notice provided before suspension

After 30 Days Late:

- Contract may be terminated
- All payments made are non-refundable
- Legal action may be initiated

6. REFUND POLICY

Non-Refundable

Payments are **NON-REFUNDABLE** once:

- Contract is signed
- Work has commenced
- Deposit has been paid
- More than 7 days have passed

Refundable Situations

Partial refunds may be considered if:

- Developer fails to deliver as per contract
- Developer initiates contract termination
- Mutual agreement to terminate before work begins

Refund Calculation:

- $\text{Refund} = \text{Total Paid} - (\text{Work Completed \%} \times \text{Contract Value}) - \text{Admin Fee (10\%)}$

7. DISCOUNT POLICY

When Offered

Discounts may be offered for:

- Non-profit organizations: 5-15%
- Referrals from existing clients: 5%
- Multiple projects: 10-15%
- Full upfront payment: 5%

Maximum Discount

- **Standard Maximum:** 15%
- **Special Cases (NGOs):** Up to 30%
- **Discounts NOT cumulative** (only highest applies)

8. WEBSITE ACCESS CONTROL

Before Full Payment

- Developer retains admin access
- Client receives limited/view-only access
- Developer can suspend access for non-payment

After Full Payment

- Complete ownership transfers to client
- Developer removes admin access
- Client has full control

9. INVOICING

When Issued

- Upon contract signing (for deposit)
- 14 days before each subsequent payment
- Upon project completion (for final payment)

Payment Terms

- **Due Date:** As specified on invoice
- **Payment Window:** 7 days from invoice date
- **Overdue:** Late fees apply after grace period

10. COMMITMENT LETTERS

When Required

Commitment letters are **MANDATORY** for:

- All payment plans
- Any deferred payments
- Projects over KES 75,000
- First-time organizational clients

Must Include

- Full payment schedule with dates and amounts
- Acknowledgment of consequences for non-payment
- Authorization signature (with stamp for organizations)
- Witness signature

Legal Standing

- Commitment letters are legally binding
- Can be used as evidence in legal proceedings
- Must be signed before project launch

11. PAYMENT EXTENSIONS

When Considered

- Genuine emergencies (medical, family)
- Organizational funding delays with proof
- Economic hardship with documentation

Requirements

- Written request 14 days before due date
- Valid reason with supporting documents
- New payment date proposed (max 30 days extension)
- Late fees may still apply

Approval:

- Extensions granted at developer's discretion
- Must be agreed in writing
- Maximum 2 extensions per project

12. MAINTENANCE PAYMENTS

Monthly Maintenance

Standard Terms:

- Due 1st day of each month
- Advance payment (for upcoming month)
- Auto-renewal unless 30 days notice given

Payment Methods:

- Standing order (preferred)
- Monthly cheque
- M-Pesa/Bank transfer

Late Maintenance Payments

Grace Period: 7 days

After Grace Period:

- Services suspended after 14 days
- 5% late fee applies
- Reactivation fee: KES 2,000

13. DISPUTE RESOLUTION

Payment Disputes

Process:

1. Client raises dispute in writing
2. Developer responds within 5 business days
3. Meeting scheduled within 14 days
4. Mediation if no resolution
5. Arbitration as final resort

During Dispute

- Work continues if 50%+ paid
- Work stops if dispute is about initial payments
- No refunds until dispute resolved

14. CONTACT FOR PAYMENT QUERIES

Developer Contact:

Name: Enock Kibe Ngunyi

Phone: 0735663656

WhatsApp: 0735663656

Email: kibeenock7390@gmail.com

Business Hours: Monday-Friday, 9 AM - 6 PM EAT

Response Time: Within 24 hours

15. CLIENT ACKNOWLEDGMENT

By engaging services and signing contract, client acknowledges:

- Reading and understanding this payment policy
- Agreeing to all terms and conditions
- Committing to payment schedule
- Understanding consequences of non-payment

PAYMENT CHECKLIST

For Payment Plans:

Before Project Launch: ☐ Deposit payment made and cleared

☐ Post-dated cheques provided for all future payments

☐ Commitment letter signed and stamped

☐ Payment agreement signed

☐ All cheques verified as valid

During Project: ☐ Payments made on schedule

☐ Funds available when cheques deposited

☐ Communication maintained with developer

☐ Any issues reported 14 days in advance

After Project: ☐ Final payment made

☐ Full ownership transferred

☐ Maintenance contract initiated (if applicable)

☐ All documentation received

This policy protects both developer and client, ensuring fair, transparent, and professional business relationships.

Policy Effective Date: January 2025

Next Review Date: January 2026

Version: 1.0

END OF PAYMENT POLICY